

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Alyxandra Herbert	)	
License Nos. 068.0134402	)	Docket Nos. 2023-176
097.0132585	)	2023-177

Stipulation and Consent Order

Stipulation

NOW COMES the State of Vermont (“the State”) by and through Prosecuting Attorney George Hasselback, and Respondent Alyxandra Herbert, by and through her counsel Tristram Coffin, Esq., who stipulate and agree as follows:

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the “Board”) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (“OPR”).

Stipulated Facts

2. Alyxandra Herbert of South Burlington, VT was licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor (“LCMHC”) under license number 068.0134402. This license was first issued on October 15, 2021 and it expired on January 31, 2023.
3. Respondent was also on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists (“NLNCP”) under license number 097.0132585. This license was first issued on July 31, 2017 and it expired on November 30, 2022.
4. At all times relevant to this matter, Respondent was employed as a mental health counselor by a mental health care facility (“the Facility”).
5. The Facility primarily provided mental health and substance abuse counseling services to teenagers, young adults, and their families .
6. While working at the Facility, Respondent began to provide counseling services for a client identified by the initials “S.H.”

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7. Respondent first began to see S.H. professionally in the fall of 2018.
8. Initially, Respondent met with S.H. three times weekly to provide counseling.
9. Respondent's treatment of S.H. related to his diagnosis of dissociative identity disorder and was focused primarily on crisis management and stabilization.
10. During one of these sessions, S.H. told Respondent that she and he could be a "family." Respondent discussed this therapeutically by addressing their family wounds. Thereafter, S.H. asked if they could meet outside of the therapy office. Respondent said I don't think so but that she would check with her colleagues.
11. In following sessions, based upon consultation with her colleagues, Respondent declined to engage in these types of meetings, telling S.H. that, after speaking with colleagues, she had deemed such meetings to be inappropriate.
12. S.H. felt that Respondent had "broke their promise" to be a "family."
13. S.H. stopped seeing Respondent for counseling services at the end of the summer of 2020 and moved to Philadelphia, PA.
14. In the summer of 2021, S.H. resumed remote treatment with Respondent.
15. In approximately December 2021 to January 2022, Respondent began to see S.H. for counseling five (5) times a week.
16. In the spring of 2022, S.H. contacted Respondent about in-person counseling sessions.
17. Instead of conducting in-person sessions at her office, due to S.H.'s insistence, Respondent began meeting in person with S.H. at a variety of Air BnB rental properties, both during and outside of scheduled counseling sessions.
18. During this time, Respondent took on a self-described "motherly" role with S.H., asking him to call her "Mom" after a suicide episode.
19. During this time, Respondent met with S.H. outside of scheduled counseling sessions at Air BnB rental properties in and around Burlington, VT.
20. During this time, Respondent and S.H. repeatedly exchanged care packages and gifts, referring to each other as "found family."
21. In the summer of 2022, Respondent visited S.H. in Philadelphia, PA while on a pre-planned vacation.
22. During that visit, Respondent stayed in the same residence as S.H. at S.H.'s insistence.
23. During that visit, Respondent and S.H. shared a bed because there was no other accommodation available. There was no intimate or sexual contact

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24. In the fall of 2022, S.H. contacted Respondent stating that he was suicidal.
25. Respondent then met S.H. at another Air BnB rental property, spending the night there with S.H. due to S.H.'s threats of suicide.
26. In September of 2022, Respondent informed S.H. that she was ending their personal relationship immediately.
27. Respondent immediately blocked S.H.'s phone number and would only accept Zoom links for further therapeutic sessions as a means of communication with S.H.
28. Respondent continued remote counselling sessions with S.H. until late November or early December of 2022.
29. Following his final treatment session with Respondent and on or about December 7, 2022, S.H. came to the Facility and informed the management of the Facility about his treatment by, and relationship with, Respondent.
30. On or about December 8, 2022, Respondent was terminated from her position at the Facility.

Violation One: 3 V.S.A. §129a(b)(1) Performance of unsafe or unacceptable patient or client care.

31. The State re-alleges and incorporates Paragraphs 2 through 30 above.
32. Vermont law requires LCMHC's and NLNCP's to practice competently by providing safe and acceptable client care.
33. Paragraphs 2 through 30 above demonstrate that Respondent failed to provide safe and acceptable client care by adopting a familial relationship with S.H. that included asking him to call her "Mom," adopting a maternal role, meeting with S.H. outside of therapeutic sessions, staying overnight with S.H.
34. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 26 V.S.A. §3271(a)(6) Entering an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with his or her professional obligations.

35. The State re-alleges and incorporates Paragraphs 2 through 30 above.
36. As a LCMHC, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.

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- 37. Paragraphs 2 through 30 above demonstrate that Respondent entered an additional relationship with S.H., a familial relationship outside of the therapeutic relationship, that might have impaired Respondent's objectivity or otherwise interfered with her professional obligations.
- 38. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Three: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

- 39. The State re-alleges and incorporates Paragraphs 2 through 30 above.
- 40. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to maintain appropriate boundaries with clients and former clients and avoid entering non-professional relationships with clients/former clients when such a relationship may be harmful to the client.
- 41. Paragraphs 2 through 30 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by violating professional boundaries, entering a non-therapeutic relationship with S.H. and engaging in conduct that is potentially harmful to S.H.
- 42. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to officially document, prior to a non-therapeutic interaction with a client/former client (when feasible) the extension of the counseling boundaries beyond conventional parameters. *See* ACA Code of Ethics, Standards A.6.c.
- 43. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to take appropriate professional precautions, such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs to the client when extending professional boundaries. *See* ACA Code of Ethics, Standards A.6.b.
- 44. Paragraphs 2 through 30 above demonstrate that Respondent failed to take appropriate precautions when entering a non-therapeutic friendship with S.H., failed to consult with S.H. regarding the risks and benefits of extending the boundaries of the therapeutic relationship, and failed to take steps to ensure that her judgment was not impaired and that no harm would occur to S.H. when extending the professional boundaries.
- 45. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

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Violation Four: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

46. The State re-alleges and incorporates Paragraphs 2 through 30 above.
47. In Vermont, a LCMHC and NLNCP must exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
48. Paragraphs 2 through 30 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid actions repugnant to the obligations of the professions when she told S.H. to address her as “Mom,” entered a familial relationship with S.H., met with S.H. outside of therapeutic sessions on several occasions
49. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A §129a(a)(15).

Violation Five: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to harm the public.

50. The State re-alleges and incorporates Paragraphs 2 through 30 above.
51. As a licensed LCMHC and NLNCP in the State of Vermont, Respondent is required to refrain from engaging in conduct of a character likely to deceive, defraud, or harm the public.
52. Paragraphs 2 through 30 demonstrate that Respondent engaged in conduct of a character likely to harm the public when she told S.H. to address her as “Mom,” entered a familial relationship with S.H., met with S.H. outside of therapeutic sessions on several occasions.
53. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct of a character likely to deceive, defraud, or harm the public in violation of 3 V.S.A. § 129a(a)(28).

Understandings

54. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below.

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Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence. Respondent continues to dispute the allegations.

55. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
56. Respondent specifically waives any claims that any disclosures made to the Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
57. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
58. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
59. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
60. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
61. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **INDEFINITELY SUSPENDS** Respondent's license to practice as a LCMHC. Respondent must petition for reinstatement. No more than forty-five (45) days prior to requesting reinstatement, Respondent must, at their own cost:
 1. Obtain an independent mental health evaluation by a pre-approved licensed professional with more than ten (10) years' experience ("Independent Evaluator") who has verified receipt of this Stipulation and Consent Order. The evaluation report shall meet the independent evaluation requirements posted on OPR's website. The results of the Independent Evaluation must indicate that Respondent is fit to practice and does not present a risk to the safety, health, or welfare of Respondent's potential clients, as well as any recommendations that would ensure Respondent is safe to practice. The evaluation must be submitted to the Enforcement Unit Case Manager.
 2. If recommended by an Independent Evaluator, enter into a treating professional agreement and mental health treatment plan with a pre-approved treating professional and follow all recommendations.

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3. Successfully complete (i.e., receive a passing score, if applicable) ten (10) hours of pre-approved coursework on Ethics, Boundaries, and relationships with clients. The coursework must be pre-approved by the Enforcement Case Manager. Respondent shall submit the certificates of completion, completed assignment book(s) and quiz results, if applicable, to the Enforcement Case Manager. The coursework may not be counted toward any continuing education requirement of licensure.
 4. Respondent's petition for reinstatement must include a detailed personal statement written by Respondent that provides a full accounting of why they believe they engaged in the conduct described above, in particular the boundary transgressions, what steps they have taken to rehabilitate themselves, why adhering to ethical practice is essential in counseling practice, what steps and plan they believe will ensure that they will not engage in such conduct in the future. Respondent shall also submit documentation and letters of support with the petition.
- B. If reinstated, Respondent's license SHALL BE CONDITIONED pursuant to whatever terms the Board finds reasonable at the time of Respondent's reinstatement request, taking into account the independent evaluation, the facts above, the personal statement and anything else the Board deems relevant at that time. Conditions may include treatment/counseling, additional/ongoing coursework, supervision, practice setting requirements limiting Respondent to practice only at a facility where supervision is available, limitations as to the number of hours per week Respondent may practice, and employer reports.
- C. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain licensure, for license renewal, and for license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be considered relative to any future disciplinary matter.
- F. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

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AGREED TO:

Dated: 1/13/2025

STATE OF VERMONT
SECRETARY OF STATE

Signed by:
By: George Hasselback
George L. Hasselback
State Prosecuting Attorney

RESPONDENT

Dated: 1/13/2025

Signed by:
Alyxandra Herbert
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By: Alyxandra Herbert

Dated: 1/13/2025

ATTORNEY FOR RESPONDENT
DocuSigned by:
Tristram Coffin
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By: Tristram Coffin

APPROVED AND SO ORDERED:

Dated: 1/16/25
Date of Entry: 1/16/25

Signed by:
Mary Trombly
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By: Chairperson

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IN RE:	)	
Alyxandra Herbert	)	
License Nos. 068.0134402	)	Docket Nos. 2023-<u>176</u>
097.0132585	)	2023-<u>177</u>

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont ("the State") and makes the following charges against Alyxandra Herbert ("Respondent"):

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Statement of Facts

2. Alyxandra Herbert of South Burlington, VT was licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0134402. This license was first issued on October 15, 2021 and it expired on January 31, 2023.
3. Respondent was also on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists ("NLNCP") under license number 097.0132585. This license was first issued on July 31, 2017 and it expired on November 30, 2022.
4. At all times relevant to this matter, Respondent was employed as a mental health counselor by a mental health care facility ("the Facility").
5. The Facility primarily provided mental health and substance abuse counseling services to teenagers, young adults, and their families .
6. While working at the Facility, Respondent began to provide counseling services for a client identified by the initials "S.H."
7. Respondent first began to see S.H. professionally in the fall of 2018.
8. Initially, Respondent met with S.H. three times weekly to provide counseling.

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9. Respondent's treatment of S.H. related to his diagnosis of dissociative identity disorder and was focused primarily on crisis management and stabilization.
10. During one of these sessions, Respondent told S.H. that she and he could be a "family."
11. In following sessions, Respondent retracted this assertion, telling S.H. that, after speaking with colleagues, she had deemed that type of statement inappropriate.
12. S.H. felt that Respondent had "broke their promise" to be a "family."
13. S.H. stopped seeing Respondent for counseling services at the end of the summer of 2020 and moved to Philadelphia, PA.
14. In the summer of 2021, S.H. resumed remote treatment with Respondent.
15. At that time, Respondent began to see S.H. for counseling five (5) times a week.
16. In the spring of 2022, S.H. contacted Respondent about in-person counseling sessions.
17. Instead of conducting in-person sessions at her office, Respondent began meeting in person with S.H. at a variety of Air BnB rental properties, both during and outside of scheduled counseling sessions.
18. During this time, Respondent took on a self-described "motherly" role with S.H., asking him to call her "Mom."
19. During this time, Respondent continuously and repeatedly met with S.H. outside of scheduled counseling sessions at Air BnB rental properties in and around Burlington, VT.
20. During this time, Respondent and S.H. repeatedly exchanged care packages and gifts, referring to each other as "found family."
21. In the summer of 2022, Respondent took vacation leave from the Facility and visited S.H. in Philadelphia, PA.
22. During that visit, Respondent stayed in the same residence as S.H.
23. During that visit, Respondent and S.H. shared a bed.
24. At one meeting outside of scheduled counseling sessions, Respondent and S.H. engaged in an "adoption ceremony" where they celebrated being "found family."
25. In the fall of 2022, S.H. contacted Respondent stating that he was suicidal.

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26. Respondent then met S.H. at another Air BnB rental property, spending the night there with S.H.
27. In September of 2022, Respondent informed S.H. that her behavior towards S.H. was “delusional” and that she was ending their personal relationship immediately.
28. Respondent immediately blocked S.H.’s phone number and would only accept Zoom links for further therapeutic sessions as a means of communication with S.H.
29. Respondent continued remote counselling sessions with S.H. until late November or early December of 2022.
30. Following his final treatment session with Respondent and on or about December 7, 2022, S.H. came to the Facility and informed the management of the Facility about his treatment by, and relationship with, Respondent.
31. On or about December 8, 2022, Respondent was terminated from her position at the Facility.

Violation One: 3 V.S.A. §129a(b)(1) Performance of unsafe or unacceptable patient or client care.

32. The State re-alleges and incorporates Paragraphs 2 through 31 above.
33. Vermont law requires LCMHC’s and NLNCP’s to practice competently by providing safe and acceptable client care.
34. Paragraphs 2 through 31 above demonstrate that Respondent failed to provide safe and acceptable client care by adopting a familial relationship with S.H. that included asking him to call her “Mom,” adopting a maternal role, meeting with S.H. outside of therapeutic sessions, staying overnight with S.H., and sharing a bed with S.H.
35. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 26 V.S.A. §3271(a)(6) Entering an additional relationship with a client that might impair the licensed clinical mental health counselor’s objectivity or otherwise interfere with his or her professional obligations.

36. The State re-alleges and incorporates Paragraphs 2 through 31 above.
37. As a LCMHC, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.
38. Paragraphs 2 through 31 above demonstrate that Respondent entered an additional relationship with S.H., a familial relationship outside of the therapeutic relationship,

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that might have impaired Respondent's objectivity or otherwise interfered with her professional obligations.

39. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Three: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

40. The State re-alleges and incorporates Paragraphs 2 through 31 above.
41. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to maintain appropriate boundaries with clients and former clients and avoid entering non-professional relationships with clients/former clients when such a relationship may be harmful to the client.
42. Paragraphs 2 through 31 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by violating professional boundaries, entering a non-therapeutic relationship with S.H. and engaging in conduct that is potentially harmful to S.H.
43. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to officially document, prior to a non-therapeutic interaction with a client/former client (when feasible) the extension of the counseling boundaries beyond conventional parameters. *See* ACA Code of Ethics, Standards A.6.c.
44. The essential standards of acceptable and prevailing practice require a LCMHC and NLNCP to take appropriate professional precautions, such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs to the client when extending professional boundaries. *See* ACA Code of Ethics, Standards A.6.b.
45. Paragraphs 2 through 31 above demonstrate that Respondent failed to take appropriate precautions when entering a non-therapeutic friendship with S.H., failed to consult with S.H. regarding the risks and benefits of extending the boundaries of the therapeutic relationship, and failed to take steps to ensure that her judgment was not impaired and that no harm would occur to S.H. when extending the professional boundaries.
46. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

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Violation Four: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

47. The State re-alleges and incorporates Paragraphs 2 through 31 above.
48. In Vermont, a LCMHC and NLNCP must exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
49. Paragraphs 2 through 31 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid actions repugnant to the obligations of the professions when she told S.H. to address her as “Mom,” entered a familial relationship with S.H., met with S.H. outside of therapeutic sessions on several occasions (sometimes sleeping over and on at least one occasion sharing a bed), and engaging in an “adoption ceremony” where she assumed a putative parental role over S.H.
50. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A §129a(a)(15).

Violation Five: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

51. The State re-alleges and incorporates Paragraphs 2 through 31 above.
52. As a licensed LCMHC and NLNCP in the State of Vermont, Respondent is required to refrain from engaging in conduct of a character likely to deceive, defraud, or harm the public.
53. Paragraphs 2 through 31 demonstrate that Respondent engaged in conduct of a character likely to harm the public when she told S.H. to address her as “Mom,” entered a familial relationship with S.H., met with S.H. outside of therapeutic sessions on several occasions (sometimes sleeping over and on at least one occasion sharing a bed), and engaging in an “adoption ceremony” where she assumed a putative parental role over S.H.
54. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct of a character likely to deceive, defraud, or harm the public in violation of 3 V.S.A. § 129a(a)(28).

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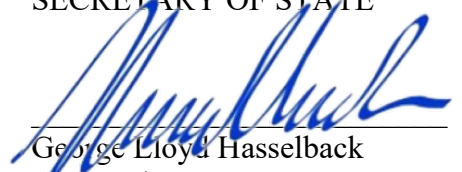
Relief Requested

WHEREFORE, the LCMHC license (#068.0134402) and NLNCP license (#097.0132585) of Alyxandra Herbert should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 25th day of September, 2023.

STATE OF VERMONT
SECRETARY OF STATE

By: _____


George Lloyd Hasselback
Prosecuting Attorney
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george.hasselback@vermont.gov

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